

Court No. - 32

Case :- WRIT - C No. - 744 of 2020

Petitioner :- Jai Prakash Gupta

Respondent :- State Of U.P.And 3 Others

Counsel for Petitioner :- Awadhesh Kumar Malviya

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following relief:

"(a). To, issue a writ, order or direction in the nature of certiorari quashing the order impugned dated 26.11.2019 passed by the respondent no. 3 (Annexure-8 to the writ petition). "

Heard the learned counsel for the petitioner and Mr. Mahboob Ahmad, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Sri Mahboob Ahmad, learned counsel for the Electricity Department has very fairly conceded that final order has been passed without considering the objection of the petitioner.

In view of the above, the impugned order dated 26.11.2019 is hereby quashed and the petitioner is directed to appear on 28.1.2020 at 11.00 A.M. before the Respondent No. 3, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No. 3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned order dated 26.11.2019 shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 10.1.2020

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